5. SERVICE LEVELS

5.1 The Supplier shall meet the availability target stated in paragraph 5.2 in each calendar month of the Term.[1]

5.2 The availability target is ninety-nine percent (99%) of each calendar month, measured at the Supplier's monitoring endpoint and excluding any period of planned maintenance notified to the Customer in advance.

5.3 Planned maintenance is notified at least five (5) Business Days in advance and does not count towards the availability target.

[1] Capitalised terms used in this Schedule have the meanings given in clause 1 of the Agreement.

6. SERVICE CREDITS

6.1 Where the Supplier does not meet the availability target in a calendar month, the Customer may claim a Monthly Service Credit by notifying the Supplier within thirty (30) days of the end of that month.[2]

6.2 A Monthly Service Credit is two percent (2%) of the fees for the month in which the failure occurred, for each full percentage point below the availability target.

7. TERM AND TERMINATION

7.1 The Customer may not terminate this Schedule or the Agreement before the end of the thirty-six (36) month Term, and the Supplier may terminate either of them at any time on ten (10) days' written notice to the Customer.

[2] A Monthly Service Credit is the Customer's only remedy for a failure to meet the availability target, and the Customer waives every other claim arising from that failure.